

Tonka Time Rentals

Weekend Mini Excavator Rental Agreement, Checklist, and Limited Damage Waiver

1. Parties, Identity, and Reservation

Lessor / Rental Company: Tonka Time Rentals LLC, a Colorado limited liability company, including its owners, managers, employees, contractors, agents, affiliates, successors, and assigns, as applicable. **Renter / Customer:** {{name}} **Email:** {{email}} **Phone:** {{phone}} **Reservation ID:** {{reservation_id}} **Billing / payment reference:** {{payment_reference}}

Customer represents that the information provided in checkout, scheduling, payment, and signing is true, accurate, and complete. Customer agrees to promptly update Tonka Time Rentals if any jobsite, contact, payment, 811, operator, or access information changes.

2. Electronic Records and Electronic Signature Consent

By checking acceptance boxes, typing a name, signing through OpenSign, or otherwise completing this signing process, Customer agrees to conduct this rental transaction electronically and intends the electronic signature, typed name, checkbox acknowledgements, audit log, payment record, and completed PDF to have the same legal effect as a handwritten signature and paper record.

Customer agrees that Tonka Time Rentals may rely on the email address, phone number, IP/session data, payment record, OpenSign audit trail, reservation details, and completed PDF to authenticate acceptance of this Agreement.

3. Rental Term, Jobsite, and Permitted Use

Weekend start: {{weekend_start}} **Weekend end:** {{weekend_end}} **Approved jobsite address:** {{jobsite_address}} **Colorado 811 ticket:** {{ticket_811}} **Work category:** {{work_category}} **Planned work description:** {{work_description}}

The rental term begins when the equipment is delivered to or placed at the approved jobsite and ends when Tonka Time Rentals picks up and checks in the equipment, unless extended in writing. This is a weekend homeowner rental for private-property use at the approved jobsite only.

Customer may not move, transport, relocate, subrent, loan, or use the equipment at any other location without prior written approval.

4. Equipment Package, Ownership, and Substitution

The standard package is a compact weekend mini excavator rental and related normal-use accessories or attachments made available by Tonka Time Rentals. The specific machine model, serial number, unit number, buckets, thumb, accessories, and attachments may vary based on availability.

Machine / unit: {{machine_unit}} **Serial number:** {{machine_serial}} **Hour meter out:** {{hour_meter_out}} **Attachments / accessories provided:** {{attachments_included}}

Tonka Time Rentals retains title and ownership of all equipment, attachments, keys, trackers, accessories, manuals, and documents. Customer receives only a temporary right of possession and use during the rental term and has no ownership, security, lien, or transfer rights in the equipment. Tonka Time Rentals may substitute substantially similar equipment if operationally necessary.

5. Charges, Taxes, Deposit, Card Authorization, and Refunds

Customer agrees to pay the rental charges, delivery/pickup charges, taxes, fees, deposit, damage waiver charge if accepted, fuel, cleaning, late charges, damage charges, missing item charges, recovery charges, and other amounts shown at checkout or owed under this Agreement.

- **Weekend rental charge:** {{weekend_rental_charge}}
- **Delivery and pickup charge:** {{delivery_fee}}
- **Extended delivery surcharge, if applicable:** {{extended_delivery_fee}}
- **Limited damage waiver charge, if accepted:** {{damage_waiver_fee}}
- **Taxes / governmental charges, if applicable:** {{taxes}}
- **Security deposit / card hold:** {{security_deposit}}
- **Total due at checkout:** {{total_due}}

Customer authorizes Tonka Time Rentals and its payment processor to charge the payment method on file for amounts due under this Agreement, including post-rental charges identified after return inspection.

The security deposit or card hold is refundable only after satisfactory return and check-in, subject to unpaid charges, cleaning, fuel, late return, damage, loss, missing items, administrative costs, and other amounts owed.

Taxes are handled based on applicable state, county, city, special district, and home-rule rules. Any tax treatment shown at checkout is part of the reservation records and may be adjusted if required by law or payment processor configuration.

6. Delivery, Pickup, Access, and Site Conditions

Tonka Time Rentals will deliver and pick up the equipment at the approved jobsite unless otherwise agreed in writing. Customer is responsible for accurate address information and safe, lawful, unobstructed access for delivery, unloading, operation, staging, loading, and pickup.

Customer must identify gates, narrow access, low branches, overhead wires, soft ground, slopes, mud, snow, septic systems, irrigation systems, buried tanks, utilities, retaining walls, culverts, drainage structures, landscaping, pavement limits, HOA restrictions, or other conditions that may affect safe access or operation.

Tonka Time Rentals may refuse, delay, cancel, or suspend delivery/pickup if conditions appear unsafe, inaccessible, unlawful, or materially different from what Customer represented.

7. GPS Tracking, Geofence, Anti-Theft, and Location Restrictions

Customer acknowledges and agrees that the equipment may contain GPS, cellular, telematics, Bluetooth, radio-frequency, anti-theft, or other location and security technology.

Customer consents to Tonka Time Rentals monitoring the location, movement, status, and recovery-related information of the equipment during the rental period and until the equipment is returned, recovered, or otherwise back in Tonka Time Rentals' possession.

Tonka Time Rentals may establish a geofence around the approved jobsite, delivery route, storage yard, or other authorized location. Movement outside the approved geofence, disabling or tampering with tracking equipment, loss of tracking signal, unauthorized transport, or use at an unapproved location may be treated as a material breach of this Agreement.

If a geofence alert, unauthorized movement alert, tamper alert, or suspicious location event occurs, Tonka Time Rentals may contact Customer, suspend the rental, require immediate return of the equipment, recover the equipment, charge applicable recovery or service fees, retain all or part of the deposit, and pursue any other rights or remedies available under this Agreement or applicable law.

Customer may not remove, disable, block, shield, alter, damage, interfere with, or tamper with any GPS, tracking, telematics, lock, key, security, or anti-theft device installed on or associated with the equipment.

Location data may be used for delivery, pickup, customer support, maintenance, geofence monitoring, theft prevention, recovery, billing, damage investigation, insurance claims, law enforcement reports, dispute resolution, and enforcement of this Agreement.

8. Customer Representations and Authority

- Customer has authority to enter into this Agreement and is at least 18 years old.
- Customer is the property owner or has valid permission from the property owner to perform the work.

- Customer has the lawful right to use the equipment at the approved jobsite.
- Customer will comply with all laws, permits, easements, HOA rules, right-of-way restrictions, utility requirements, and safe digging practices.
- Customer will not allow unauthorized, untrained, impaired, distracted, or incompetent operators to use the equipment.
- Customer will immediately stop use if the equipment appears unsafe, damaged, leaking, unstable, overheated, or malfunctioning.

Property owner? ☐ Yes {{is_property_owner_yes}} ☐ No {{is_property_owner_no}} **Owner permission confirmed?** ☐ Yes {{owner_permission_yes}} ☐ No {{owner_permission_no}}

9. Authorized Operators

Only Customer and the approved operators listed below may operate the equipment. Customer is responsible for all acts, omissions, injuries, property damage, utility strikes, equipment damage, loss, theft, fees, and claims caused by Customer or any person who uses, accesses, moves, or controls the equipment during the rental term, whether authorized or unauthorized.

Authorized operator 1: {{authorized_operator_1}} **Phone:** {{authorized_operator_1_phone}}

Authorized operator 2: {{authorized_operator_2}} **Phone:** {{authorized_operator_2_phone}}

Customer initials - authorized operator responsibility: _____

10. Property Boundaries, Permits, Colorado 811, and Utilities

Customer is solely responsible for knowing property boundaries, easements, setbacks, drainage restrictions, utility corridors, septic areas, HOA restrictions, permit requirements, and jobsite limits. Fences, landscaping, driveways, roads, and apparent use lines may not be property boundaries. Tonka Time Rentals does not verify boundaries, permits, title, easements, drainage rights, utility locations, or authority to dig.

Customer must submit required utility locate requests, wait until the lawful locate window has passed, review locate responses, maintain the 811 ticket, and use reasonable care around marks and tolerance zones. Customer understands that 811 may not mark private utilities, which may include irrigation lines, septic lines, sewer laterals, propane lines, private electric lines, yard lights, dog fences, drainage pipes, sump pump lines, and outbuilding utilities.

If Customer strikes, exposes, smells, hears, or suspects damage to any utility or underground facility, Customer must stop immediately, move to a safe area, call 911 if there is any danger, contact the affected utility if known, contact 811 if required, and contact Tonka Time Rentals. Customer is responsible for utility strikes and related claims, repairs, fines, service interruptions, emergency response, and property damage.

Customer initials - 811/private utilities responsibility: _____

11. Homeowner Dig Checklist

Customer must complete and affirm each item before delivery/release and again before operating if site conditions change.

- ☐ I know my property boundaries. ({{knows_boundaries}})
- ☐ I understand fences, landscaping, and driveways may not be property lines. ({{understands_fence_not_boundary}})
- ☐ I have permission to dig at the approved jobsite. ({{has_owner_permission}})
- ☐ I will not dig on neighboring property. ({{not_digging_neighbor_property}})
- ☐ I will not dig in a public right-of-way without required permit or permission. ({{not_digging_public_row_without_permit}})
- ☐ I submitted, or will submit before digging, a Colorado 811 request. ({{submitted_811_or_will_before_digging}})
- ☐ I will wait for the locate window and review utility responses before digging. ({{will_wait_for_locate_window}})
- ☐ I understand private utilities may not be marked by 811. ({{understands_private_utilities}})
- ☐ I will avoid utility tolerance zones unless hand digging and extra care are used as required. ({{will_avoid_utility_tolerance_zone}})
- ☐ I will not undermine structures, slabs, retaining walls, driveways, sidewalks, trees, slopes, roads, fences, or utilities without a safe plan. ({{will_not_undermine_structures}})

- [] I will keep children, pets, vehicles, and bystanders away from the work area.
({{will_keep_people_pets_away}})
- [] I will stop and call Tonka Time Rentals if the machine leaks, overheats, throws a track, becomes stuck, or seems unsafe. ({{will_stop_if_unsafe}})
- [] I understand the excavator may contain GPS, geofence, telematics, or anti-theft tracking technology.
({{understands_equipment_may_be_tracked}})
- [] I consent to Tonka Time Rentals monitoring equipment location during the rental period and until the equipment is returned or recovered. ({{consents_to_location_monitoring}})
- [] I understand the excavator may be used only at the approved jobsite address.
({{will_use_only_at_approved_jobsite}})
- [] I will not move the excavator to another property or jobsite without prior written approval.
({{will_not_move_without_approval}})
- [] I will not load, haul, tow, or transport the excavator on my own trailer, truck, rollback, or other vehicle without prior written approval. ({{will_not_transport_without_approval}})
- [] I will not remove, disable, cover, block, or tamper with any GPS, tracker, lock, key, or security device.
({{will_not_tamper_with_tracking_device}})
- [] I understand that unauthorized movement, geofence breach, tracker tampering, or unapproved transport may result in rental termination, recovery fees, deposit retention, and additional claims.
({{understands_geofence_breach_consequences}})

12. Quick Tutorial and Safety Acknowledgements

Tonka Time Rentals may provide a quick start guide, in-person orientation, video tutorials, troubleshooting guidance, and safety reminders. These materials are general orientation only. They are not professional excavation training, jobsite engineering, construction supervision, utility locating, survey services, or legal/permit advice.

- [] I received or had access to the quick start guide. ({{received_quick_start_guide}})
- [] I understand the basic controls well enough to operate safely or will not operate.
({{understands_basic_controls}})
- [] I know how to perform an emergency shutdown and lower the boom/bucket safely.
({{knows_emergency_shutdown}})
- [] I understand rollover, tip-over, slope, overhead, and blind-spot risks. ({{understands_tip_risk}})
- [] I will watch the required tutorial videos before operating. ({{will_watch_tutorial_videos}})
- [] I will call Tonka Time Rentals if I am unsure about safe operation or troubleshooting.
({{will_call_if_unsure}})

Tutorial video acknowledgement ID / version: {{tutorial_video_version}} **Completion status:**
{{tutorial_completion_status}}

Customer initials - tutorial is not professional training: _____

13. Prohibited Uses

- Operating on unsafe slopes, unstable ground, drop-offs, soft shoulders, ice, mud, or unsuitable surfaces.
- Digging without required utility locates, permission, or permits.
- Operating near marked utilities except as allowed by law and safe digging practices.
- Operating under overhead utilities, near energized lines, or near unsafe overhead hazards.
- Using the machine for heavy demolition, concrete breaking, lifting people, trench shoring, or work beyond machine capacity.
- Operating in water, ponds, streams, drainage channels, submerged conditions, or flood conditions.
- Pulling vehicles, large stumps, foundations, structures, or loads beyond the machine capacity.
- Transporting, relocating, subleasing, loaning, modifying, repairing, disabling, or tampering with the equipment without written approval.
- Operating while impaired by alcohol, drugs, medication, fatigue, distraction, or any unsafe condition.
- Continuing to operate after warning lights, overheating, leaks, unusual noises, track issues, instability, impact, or suspected damage.

Any prohibited use is a material breach, may void any damage waiver, and may make Customer fully responsible for all damage, loss, claims, recovery, costs, fees, and injuries.

14. Maintenance, Care, Fuel, Cleaning, and Stop-Use Duties

Customer must use ordinary care, follow instructions, protect the equipment from theft and damage, and promptly notify Tonka Time Rentals of problems. Customer may not add improper fuel, oil, coolant, hydraulic fluid, additives, or other fluids.

Customer must stop use and contact Tonka Time Rentals if any warning light, overheating, leak, track issue, unusual noise, loss of power, stuck condition, impact, rollover, or unsafe condition occurs.

Equipment must be returned in substantially the same condition as delivered, ordinary wear excepted, with attachments, keys, and accessories returned. Customer may be charged for excessive mud, clay, concrete, asphalt, debris, manure, hazardous material, trash, brush, wire, roots, fuel shortage, missing items, late return, cleaning, recovery, or damage.

15. Return Condition, Inspection, Photos, GPS, and Records

Pre-delivery and post-return photos, videos, inspection forms, fuel readings, hour meter readings, GPS/telematics records, service notes, customer communications, and payment records are part of the rental record. Customer agrees that Tonka Time Rentals may photograph or video the equipment and jobsite delivery/pickup condition.

Customer acknowledges the equipment may contain GPS, tracking, telematics, or security devices. Customer may not remove, disable, block, tamper with, or interfere with any tracker or security device.

Hour meter in: {{hour_meter_in}} **Fuel level out:** {{fuel_level_out}} **Fuel level in:** {{fuel_level_in}}

16. Damage, Loss, Theft, Risk of Loss, and Repair Charges

Customer is responsible for the equipment from delivery/release until return and check-in. Customer bears risk of loss, theft, disappearance, vandalism, damage, misuse, accident, rollover, fire, water damage, utility strike, seizure, impound, or inability to recover the equipment during the rental term, except only to the limited extent expressly waived in a written damage waiver accepted by Tonka Time Rentals.

- Track, roller, sprocket, idler, bucket, thumb, hydraulic, cylinder, hose, pin, coupler, blade, body, cab/canopy/ROPS, glass, control, key, tracker, accessory, engine, electrical, and fluid-related damage.
- Damage caused by misuse, abuse, neglect, impact, overload, improper fuel/fluids, overheating, submerged use, water, rollover, transport, unauthorized operators, prohibited use, or continued use after warning signs.
- Jobsite recovery, extraction, towing, hauling, diagnostics, parts, labor, administrative costs, lost rental availability, and third-party charges.
- Damage to utilities, pavement, structures, landscaping, irrigation, septic systems, drainage systems, neighboring property, vehicles, roads, sidewalks, curbs, fences, trees, and other property.

Tonka Time Rentals may estimate damage after return and may adjust charges after cleaning, diagnosis, vendor estimate, repair invoice, or discovery of hidden damage.

17. Optional Limited Damage Waiver

Selected waiver option: {{damage_waiver_choice}} [] Accept {{damage_waiver_accept}} [] Decline {{damage_waiver_decline}}

If accepted and paid before the rental begins, the Limited Damage Waiver is a contractual waiver of certain direct accidental equipment-damage charges only, subject to the deductible, exclusions, and conditions stated in this Agreement and checkout. It is not insurance and does not provide liability coverage for Customer.

Damage waiver fee: {{damage_waiver_fee}} **Deductible / customer responsibility:** {{damage_waiver_deductible}}

The Limited Damage Waiver does not cover theft, disappearance, failure to return, rollover, submerged equipment, water damage, fire, intentional damage, vandalism, misuse, negligence, recklessness, prohibited use, unauthorized operators, transport damage caused by Customer, improper fuel/fluids, low fluids, overheating, utility strikes, third-party property damage, bodily injury, lost income, late return, cleaning, fuel, towing, recovery, environmental cleanup, fines, penalties, or damage not promptly reported.

- [] I understand the Limited Damage Waiver is not insurance and does not cover theft, rollover, submerged equipment, utility strikes, misuse, unauthorized operators, prohibited uses, transport damage, or third-party property damage.
({{damage_waiver_acknowledged}})

Customer initials - damage waiver limits: _____

18. Insurance

Customer is encouraged to verify whether homeowners, renters, contractor, commercial general liability, inland marine, umbrella, auto, or other insurance applies to rented equipment, excavation, utility strikes, property damage, or injuries. Contractor customers may be required to provide a certificate of insurance before release. Customer insurance, if any, is primary for claims arising from Customer possession, use, operation, transport, storage, or control of the equipment.

19. Indemnity, Release, and Limitation of Liability

To the fullest extent permitted by law, Customer agrees to defend, indemnify, and hold harmless Tonka Time Rentals and its owners, members, managers, employees, contractors, agents, insurers, affiliates, successors, and assigns from and against all claims, losses, liabilities, damages, fines, penalties, costs, expenses, attorney fees, injuries, death, property damage, utility damage, environmental claims, and third-party claims arising out of or related to Customer possession, use, operation, transport, storage, or return of the equipment; jobsite conditions; utility strikes; boundary or permission disputes; unauthorized operators; prohibited use; and violations of law, permit, easement, HOA, or right-of-way requirements.

Tonka Time Rentals is not liable for lost profits, project delays, loss of use, hidden conditions, consequential, incidental, special, exemplary, or punitive damages, except where such limitation is prohibited by law. Nothing in this Agreement limits liability that cannot legally be limited.

20. Default, Repossession, Collection, and Late Return

Customer is in default if Customer fails to pay, fails to return the equipment, provides false information, prevents pickup, disables tracking, allows unauthorized use, moves the equipment without approval, violates this Agreement, damages the equipment, or otherwise fails to comply.

Upon default, Tonka Time Rentals may cancel or suspend service, charge amounts due, retain amounts as allowed by contract and law, recover the equipment where permitted by law, use available tracking and jobsite information to locate the equipment, and pursue legal or equitable remedies. Customer agrees to pay reasonable recovery, collection, administrative, court, and attorney fees to the extent permitted by law.

21. No Warranty, No Professional Services, and No Reliance

Except as expressly stated in writing, the equipment is provided as-is for the rental term, subject to ordinary rental readiness. Tonka Time Rentals makes no guarantee that the equipment is suitable for Customer's specific project, soil, access, slope, trench depth, utility condition, drainage need, lifting need, legal requirement, or jobsite condition.

Tonka Time Rentals does not provide surveying, engineering, legal, utility locating, excavation supervision, construction management, permitting, or property-boundary services. Customer is solely responsible for project planning, jobsite safety, legal authority, utility locating, permits, and determining whether the equipment is appropriate.

22. Governing Law, Venue, Dispute Resolution, and Attorney Fees

This Agreement is governed by Colorado law, without regard to conflict-of-law rules, except where another rule is required by law. Venue for any dispute shall be in El Paso County, Colorado, unless another venue is required by law.

Before filing suit, the parties should attempt in good faith to resolve ordinary billing, scheduling, and damage disputes through written communication, inspection records, photos, estimates, and payment records. This does not prevent Tonka Time Rentals from recovering equipment, pursuing emergency relief, or protecting property where appropriate. The prevailing party in an action to enforce this Agreement may recover reasonable attorney fees and costs to the extent permitted by law and contract.

23. General Terms

- This Agreement, the reservation details, checkout terms, inspection forms, photos, videos, OpenSign records, payment records, and written addenda form the entire agreement for this rental.
- If any provision is held unenforceable, the rest of the Agreement remains effective to the fullest extent permitted by law.
- Customer may not assign, transfer, subrent, or delegate this Agreement or the equipment without written approval.
- No oral statement changes this Agreement unless confirmed in writing by Tonka Time Rentals.
- Headings are for convenience only and do not limit the text.
- A waiver of one breach is not a waiver of any other breach.

24. Signature and Final Acknowledgement

By signing below, Customer acknowledges that Customer has read, understood, and agreed to this Agreement, including the rental terms, homeowner dig checklist, tutorial acknowledgements, limited damage waiver election, deposit/card authorization, property-boundary and 811 responsibilities, geofence/location restrictions, prohibited uses, damage responsibility, indemnity, and electronic signature consent.

Customer name: {{name}} **Customer email:** {{email}} **Reservation ID:** {{reservation_id}}

Customer signature: [OpenSign signature field] Date signed: [OpenSign date field]

Tonka Time Rentals representative: _____ Date: _____